

HOUSE BILL 368

By Stinnett

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to student instruction.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-1304(a), is amended by adding the following as new subdivision:

() Educate students in grades nine through twelve (9-12) on the protections established in §§ 36-1-142 and 68-11-255 for the voluntary surrender of an unharmed infant by the infant's mother without criminal liability, which is commonly known as this state's safe haven law. The state board of education, with the assistance of the department of education, shall develop guidelines for the instruction required in this subdivision (a)(). The department is encouraged to collaborate with A Secret Safe Place for Newborns of Tennessee, Inc., a nonprofit organization whose mission is to educate the public and healthcare providers regarding this state's safe haven law, in developing educational materials aligned to the guidelines developed by the state board. The department shall distribute the guidelines developed by the state board pursuant to this subdivision (a)() to each LEA that serves students in any of the grades nine through twelve (9-12) and to each public charter high school before the start of the 2025-2026 school year.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.